

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party*
Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party*
Respondent.

DOCKET NO. 24-17

Served: May 4, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

ORDER CLARIFYING BRIEFING DEADLINES AND SETTING STATUS CONFERENCE

On April 24, 2026, Complainant Samsung Electronics America, Inc. (“SEA”) filed Complainant’s Motion for Sanctions (“MFS”). In brief, SEA argues that Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) committed repeated litigation misconduct, including failing to comply with an order I entered on February 20, 2026, and that I should enter a default judgment against OOCL. In the alternative, SEA argues I should compel discovery and appropriate sanctions. SEA’s MFR was ten pages, though it included a declaration with numerous attachments.

On May 1, 2026, the parties filed Joint Status Report 9 (May 2026) (“JSR9”). In it, OOCL took the position that the MFS is a dispositive motion, and that it does not need to respond to the MFS until May 11, 2026.

Commission Rules 70 and 71 set forth the procedures for dispositive and non-dispositive motions. In relevant part, Rule 70 allows a non-moving party fifteen days to respond to a dispositive motion, and the moving party seven days to reply, whereas a non-moving party has seven days to respond to a non-dispositive motion, and no reply is generally permitted. (46 C.F.R. § 502.70(b) and (c); 46 C.F.R. § 502.71(b)). Commission Rule 69(g) defines a dispositive motion as including, among other things, a “motion for initial decision on default; or any other motion for a final determination of all or part of a proceeding.” (46 C.F.R. § 502.69(g)). All other motions not listed in Commission Rule 69(g) is non-dispositive. (*Id.*).

I have the authority to alter motion briefing deadlines if necessary. (*See* 46 C.F.R. § 502.25; *see also* 46 C.F.R. § 502.70(d); 46 C.F.R. § 71(c)).

To avoid any uncertainty over the response deadline, and to clarify whether a reply is allowed, I will allow OOCL to respond to the MFS no later than May 11, and SEA to reply no later than May 18, 2026. Regarding page limits, I will limit OOCL's response to the same number of pages as SEA's MFS – in other words, 10 pages (which does not count any supporting documents) – and SEA's reply to 5 pages. If OOCL believes it needs additional pages, it may request an order for more. I note, however, that I have reviewed the exhibits to the declaration that accompanies the MFS, as well as JSR9 and prior JSRs, where the parties have discussed discovery issues. Therefore, longer briefs are likely unnecessary.

Further, the parties are to appear for a status conference on May 19, 2026, at 2:00 p.m. Eastern Daylight Time to discuss any remaining issues regarding document discovery. If the parties need a different time for the status conference, they may make a motion for another agreed-to date after the MFS is briefed fully. Accordingly, it is

HEREBY ORDERED that OOCL's response to the MFS is due no later than **May 11, 2026**. It is

FURTHER ORDERED that SEA's reply to OOCL's response to the MFS is due no later than **May 18, 2026**. It is

FURTHER ORDERED that OOCL's response to the MFS shall be no longer than 10 pages (not counting supporting documents), and SEA's reply to OOCL's response to the MFS shall be no longer than 5 pages. It is

FURTHER ORDERED that the parties are to appear for a status conference on **May 19, 2026, at 2:00 p.m. Eastern Daylight Time** via Teams. The parties are to be prepared to discuss remaining document discovery issues. Login information shall be sent to the parties shortly before the status conference.

SO ORDERED

**Richard C.
Ambrow Jr -S**

Digitally signed by
Richard C. Ambrow Jr -S
Date: 2026.05.04 13:40:06
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Richard Ambrow
Administrative Law Judge